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The Second World War has shown that the Geneva Conventions would be incomplete if they did not also ensure the safety of civilian populations.

Max Petitpierre

Swiss politician
(1899–1994)

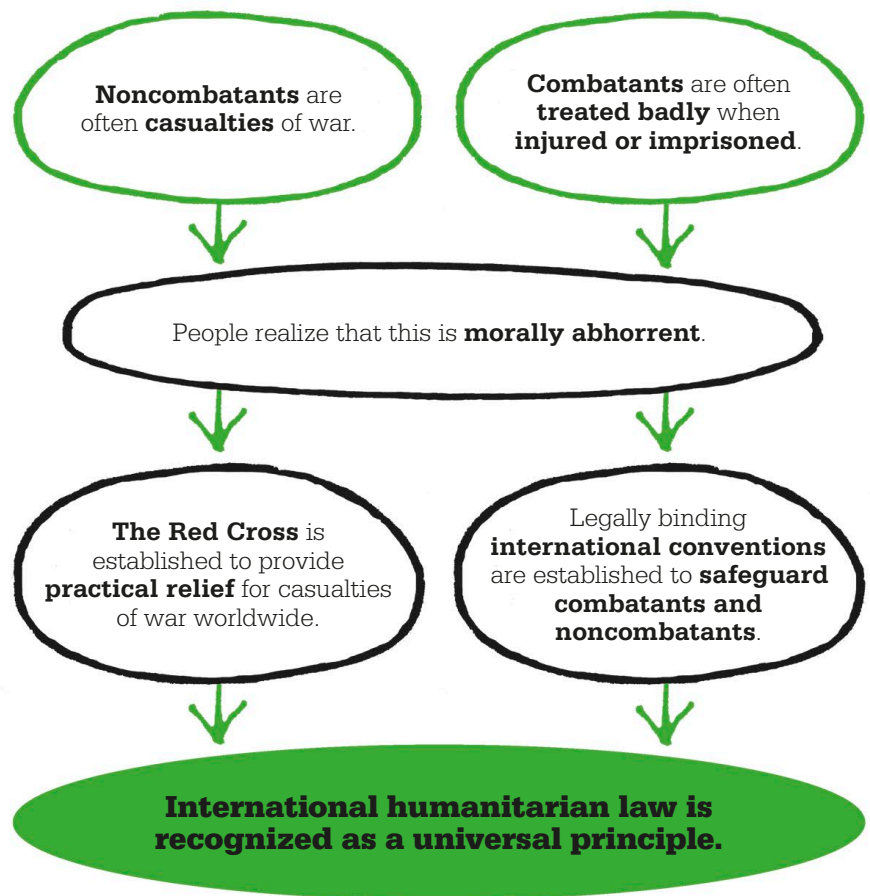
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previous Conventions had concerned themselves almost entirely with combatants, the scope in 1949 was much broader, in that the delegates considered the treatment of civilians. They adopted provisions, or articles, covering the treatment of the sick and wounded, children, and workers; repatriation; a ban on imprisonment without trial; and the maintenance of medical and hospital services.

Article 3 of the Convention is considered especially important because it covers “conflicts not of an international character.” It stipulates that those taking no active part in hostilities are always to be treated humanely and prohibits the torture of prisoners, the taking of hostages, and sentencing without due process.

Updating the Conventions

The Fourth Geneva Convention entered into force in 1950 and became the basis of international humanitarian law. It has been ratified by 196 countries to date, making it universally applicable. In 1977, two additional protocols were added to supplement the Geneva Conventions. One prohibits



indiscriminate attacks on civilians, cultural artifacts, places of worship, and the natural environment. The other extends the scope of protection during “internal” conflicts to include those fighting occupation, colonial rule, or racist regimes. Any conflict between signatory nations when no war has been declared is also included in the protocols.

The international community is obliged to locate and bring to trial those responsible for war crimes, which are the most serious breaches of the Geneva Conventions. In 2002, the International Criminal Court was established in The Hague to deal with these crimes, which can be summarized as: wilful killing; torture; the extensive destruction

of property not justified by military necessity; compelling a prisoner of war to serve in the forces of a hostile power; the denial of a fair trial for a prisoner of war; unlawful transfer or confinement; and hostage-taking.

Modern challenges

In recent years, as terrorism has become more common, some commentators have asked why states should comply with the Geneva Conventions when terrorists expressly flout them. This facet of modern conflict in particular has made the Conventions even more difficult to enforce. The ICRC is carefully addressing how they can be better applied in these challenging new situations. ■